

50& Gallery — Artist Submission Terms & Conditions

This Agreement is between:

1. The Platform / Curator: 50& Gallery (“the Gallery”), operated by [Your Name], email: [your@email]; and
2. The Artist: [Artist Full Name], email: [artist@email], address: [artist address] (“the Artist”).

Effective date: [dd/mm/yyyy]

1. Purpose

1.1 The Artist submits artworks for display and potential sale via the Gallery’s website (“the Portal”).

1.2 The Gallery acts as a listing and sales facilitator, not as a purchaser of the Artist’s work.

2. Eligibility and Curation

2.1 The Gallery may accept or decline submissions at its sole discretion.

2.2 The Gallery may remove works at any time (e.g., quality control, policy, or catalogue management), with reasonable notice where practicable.

3. What the Artist Provides

3.1 Paintings / Physical Originals

3.1.1 The Artist will provide clear photographs of the work suitable for online display (minimum [e.g., 2000px on the long edge]).

3.1.2 The Artist retains possession of the original artwork at all times until a sale is confirmed.

3.1.3 The Artist confirms the artwork is available for sale and can be packed and dispatched within [e.g., 5–10 business days] after sale confirmation.

3.2 Digital Art

3.2.1 The Artist must supply a file suitable for printing at the intended final size (minimum 300 DPI at print size, or equivalent).

3.2.2 Accepted file formats: [e.g., TIFF, PNG, high-quality JPEG, PDF].

3.2.3 Digital art may incur handling and production costs including (but not limited to) printing, materials, packing, and dispatch. These costs will be communicated before listing and/or before fulfilment and may be deducted from sale proceeds or charged separately as agreed.

4. Artist Warranties (Rights, Authenticity, and Permissions)

4.1 The Artist warrants that they own the work and/or hold all necessary rights to display and sell it.

4.2 The Artist warrants the work does not infringe copyright, trademark, privacy, or other rights of any third party.

4.3 If the work includes recognisable people, private property, or third-party material requiring permission (e.g., brands, copyrighted imagery), the Artist warrants such permissions have been obtained.

4.4 The Artist agrees to indemnify the Gallery against claims arising from breach of these warranties.

5. Image Use and Storage (Your point 3, formalised)

5.1 The Artist grants the Gallery a limited, non-exclusive, revocable licence to use submitted images/files solely to:

5.1.1 display the work on the Portal; and

5.1.2 fulfil a sale (including production/print workflow where relevant).

5.2 Images will not be used outside the Portal (e.g., external advertising, social media, third-party sites) without the Artist's written permission.

5.3 The Gallery will not retain image files after fulfilment beyond what is reasonably required for record-keeping (e.g., invoices, transaction logs) and will not keep production files longer than necessary.

5.4 The Artist acknowledges that web display involves normal technical processes such as resizing, compression, or thumbnail creation.

6. Listings and Information Accuracy

6.1 The Artist will provide accurate details including title, year, medium, size, edition information (if any), and any material facts about condition.

6.2 The Gallery may edit text for clarity, spelling, and consistency while preserving meaning.

7. Pricing, Commission, and Payments

7.1 Sale prices are set as: [Artist set / Gallery set in consultation].

7.2 The Gallery commission is [X%] of the gross sale price (excluding delivery/production costs unless otherwise stated).

7.3 Payment to the Artist will be made within [e.g., 7–14 business days] after:

7.3.1 full payment is received from the buyer; and

7.3.2 any return/refund window has expired, or the transaction is otherwise confirmed as final.

7.4 If taxes, platform fees, payment processing fees, packaging, shipping, or production costs apply, these will be treated as: [deducted before payout / paid by buyer / agreed case-by-case].

8. Fulfilment, Packing, and Shipping

8.1 Physical Originals

8.1.1 Unless otherwise agreed, the Artist is responsible for packing and shipping originals securely and professionally.

8.1.2 The Artist must use tracked delivery and retain proof of postage.

8.1.3 Risk of loss/damage in transit: [choose one]

- Option A: passes to buyer upon dispatch; or
- Option B: remains with Artist until delivery; or
- Option C: handled case-by-case.

8.2 Digital Prints / Produced Items

8.2.1 Where printing/production is arranged, the Gallery may coordinate production and dispatch.

8.2.2 Production/handling costs will be applied as described in Clause 3.2.3 and Clause 7.4.

8.2.3 The Gallery is not responsible for delays caused by third-party carriers or production partners, but will act reasonably to resolve issues.

9. Returns, Refunds, and Damaged Items

9.1 The Gallery will follow a returns/refund policy consistent with applicable consumer law and the Portal's stated policy.

9.2 If an item arrives damaged:

9.2.1 the buyer may be required to provide photos and packaging evidence; and

9.2.2 the Gallery and Artist will cooperate to determine whether refund, replacement, or repair is appropriate.

9.3 Refund responsibility and cost allocation (shipping/production) will be: [set your policy].

10. Availability, Exclusivity, and Removal

10.1 The Artist confirms the listed work is available and will not be sold elsewhere without promptly notifying the Gallery.

10.2 The Artist may request removal of a listing at any time; the Gallery will remove it within [e.g., 5 business days].

10.3 The Gallery may remove any listing that becomes unavailable, violates these terms, or is subject to dispute.

11. Conduct and Communication

11.1 The Artist agrees to respond to Gallery queries within a reasonable time (recommended: [e.g., 72 hours]) to keep listings accurate and fulfilment timely.

12. Limitation of Liability

12.1 The Gallery is not liable for indirect or consequential losses.

12.2 The Gallery's liability, where applicable, is limited to the commission amount received for the relevant transaction, except where law prevents such limitation.

13. Data Protection

13.1 Personal data will be handled for the purpose of operating the Portal and fulfilling sales, in line with applicable data protection law.

14. Governing Law

14.1 This Agreement is governed by the laws of [England & Wales / Scotland / your jurisdiction].

Signatures

Artist

Name: _____

Signature: _____

Date: _____

For 50& Gallery

Name: _____

Signature: _____

Date: _____

If you tell me:

1. your exact commission %,
2. whether artists ship originals or you do, and
3. your jurisdiction (e.g., England & Wales),

I'll revise this into a final "ready to sign" version with no placeholders.